

This motion is DENIED WITHOUT PREJUDICE.

The parties should further meet and confer. Given the policy that a timely amendment to an operative pleading is generally allowed when it is not unreasonably delayed causing undue prejudice, the parties should consider stipulating to the filing of an amended answer.

NUNEZ v. FIRST CAL FOODS, LLC, dba DENNY'S
Case No. CU25-06124

Motion for Sanctions under CCP Section 128.7

TENTATIVE RULING

Defendant's motion for sanctions under CCP Section 128.7 is DENIED.

It appears that plaintiff did not work for defendant for at least twelve months before she went on maternity leave, and therefore, she was not an "eligible employee" who was entitled to have her employment position held for her for four months while she was on leave under the California Family Rights Act ("CFRA"; Govt. Code §§ 12945.1-12945.2; 2 CCR § 11046.) Further, Plaintiff did not seek to return within four months after initiating leave due to pregnancy, childbirth or related medical condition. (Govt. Code § 12945 ("PDLL").)

But, the complaint includes other allegations not dependent upon CFRA and PDLL. For example, in addition to the wage and hour claims, plaintiff alleges defendant failed to reasonably accommodate her when she complained of pain due to standing for extended periods while pregnant.

Sanctions are proper only if the "pleading, motion or paper" is without merit. The fact that one of the arguments is frivolous does not justify sanctions. (See e.g. The Rutter Group, California Practice Guide, Civil Procedure Before Trial §§ 9:1159.1 and 9:1179; see also *Golden Eagle Distributing Corp. v. Burroughs Corp* (9th Cir. 1986) 801 F2d 1531, 1540 [interpreting FRCP 11].)

LESLEY SYRETT v. LUXOTTICA OF AMERICA, INC. and LORRAINE CHAMPLAIN
Case No. CU25-06158

Defendants' Motion to Compel Arbitration

TENTATIVE RULING

The motion of Defendants LUXOTTICA OF AMERICA, INC. ("LUXOTTICA") and LORRAINE CHAMPLAIN to compel arbitration of Plaintiff LESLEY SYRETT's complaint alleging violations of the Fair Employment and Housing Act and wage and hour law is GRANTED.

The court exercises its discretion to consider Plaintiff's opposition despite it being filed a day late.

Unconscionability. Though California and federal law alike favor arbitration, general contract defenses such as unconscionability may be applied to invalidate arbitration agreements. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125 (*Kho*).) A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree ("procedural unconscionability") and the contract contains terms that are unreasonably favorable to the other party ("substantive unconscionability"). (*Ibid.*) Both forms of unconscionability must be present for a contract to be found unconscionable overall, but a high degree of one form of unconscionability will reduce the amount of the other form that must be present in order to support an ultimate finding of unconscionability. (*Id.* at pp. 125-126.) The ultimate issue is whether a contract is sufficiently unfair in light of all of the circumstances that a court should refuse enforcement. (*Id.* at p. 126.) A party asserting unconscionability bears the burden of proof. (*Ibid.*)

Procedural unconscionability analysis begins with determining whether a contract is one of adhesion. (*Kho, supra*, 8 Cal.5th at p. 126.) A contract of adhesion is standardized, on a preprinted form, and presented on a "take it or leave it" basis. (*Ibid.*) After determining that a contract is one of adhesion a court must analyze whether the circumstances of the contract's formation created such oppression or surprise that further inspection of fairness should be done. (*Kho* at p. 126.) "Oppression" here refers to a lack of negotiation and meaningful choice; "surprise" to hiding contractual provisions within prolix printed forms. (*Ibid.*)

Analysis of substantive unconscionability is a matter of seeking out terms that are overly harsh, unduly oppressive, or unfairly one-sided. (*Kho, supra*, 8 Cal.5th at pp. 129-130.) Unconscionable terms impair the integrity of the bargaining process, attempt to impermissibly alter fundamental legal duties, or otherwise contravene public interests and policies. (*Id.* at p. 130.) They might include, without limitation, fine-print terms, unreasonably or unexpectedly harsh terms regarding the central aspects of the transaction, or terms that undermine the non-drafting party's reasonable expectations. (*Ibid.*) Again, because procedural and substantive unconscionability are evaluated on a sliding scale, terms that might not be unconscionable in the abstract could be so if imposed by an oppressive procedure. (*Ibid.*)

There is some procedural unconscionability here as the arbitration agreement was presented to Plaintiff as a condition of continued employment with no meaningful opportunity for her to negotiate. (Knight Dec. at ¶¶ 12-14.) However, the court finds there is minimal substantive unconscionability and the arbitration agreement is not unconscionable as a whole. The arbitration agreement's terms permitting either party access to provisional injunctive relief are akin to terms the California Supreme Court approved in *Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1241 as essentially stating existing law permitting provisional relief as expressed in Code of Civil Procedure

section 1281.8 and do not otherwise favor or give preference to an employer's claims. The terms in the nondisclosure agreement likewise permit LUXOTTICA only to obtain provisional injunctive relief "in aid of, or to preserve, an arbitrator's jurisdiction to address the parties' dispute under the Dispute Resolution Agreement." (Knight Dec. at ¶ 12, Exhibit A.) Even read in conjunction, the agreements do not permit LUXOTTICA alone to escape arbitration and so are not unconscionable.

Delegation of Enforceability Decision. After their moving papers engaged in an extensive analysis of unconscionability, Defendants raised the argument of delegation to the arbitrator in their reply, citing *Rent-A-Center, W., Inc. v. Jackson* (2010) 561 U.S. 63, 71 (*Rent-A-Center*). Plaintiff's opposition challenges the arbitration agreement as a whole, contending that it is unconscionable for lack of mutuality in its terms, and does not specifically challenge the delegation provision. The court declines to consider new argument raised on reply to which Plaintiff was not afforded a chance to respond. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 228.) The delegation argument does more than respond to Plaintiff's opposition as it raises a new issue. (See also *United Grand Corp. v. Malibu Hillbillies, LLC*. (2019) 36 Cal.App.5th 142, citing *American Indian Model Schools v. Oakland Unified School Dist.* (2014) 227 Cal.App.4th 258, 275.)

Conclusion. Defendants' motion to compel arbitration is GRANTED. This matter is ordered stayed pending the outcome of arbitration. Arbitration review is scheduled for **June 3, 2027 at 8:30 a.m.** Defendant shall take the lead in preparing a joint CMC statement for the arbitration review date to be filed 15 days prior.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002